

MDA Advanced Capability Concepts, Solicitation No. HQ0860-25-S-C001
Attachment 1
Requirements for FAR-Based Procurement Contracts

The following document provides an overview of some of the applicable requirements and regulations should a FAR-based procurement contract be recommended. Note, this list is not all inclusive and the final terms and conditions of the contract will be negotiated prior to award.

- A. Competition in Contracting Act (CICA):** This solicitation is issued under the provisions of FAR 6.102(d)(2), which provides for the competitive selection of white papers. Contract awards based on responses to this solicitation are considered to be the result of full and open competition and in full compliance with the provisions of Public Law 98-369 sec. 2701, "Competition in Contracting Act of 1984".
- B. Eligible Offerors:** Offerors may propose subcontracting and teaming arrangements; however, it is expected for the prime offeror to lead and perform 50% of the effort by cost.
- C. Contract Type:** MDA will consider all contract types recommended by the offeror. Offerors are advised, in accordance with FAR 16.301-3(a)(3), cost reimbursement type contracts require successful offerors to have an accounting system considered adequate for determining costs applicable to the contract.
- D. Safeguarding Covered Defense Information:** Offerors are advised that FAR-based procurement contracts are subject to the following provisions and clauses. Full text of these provisions and clauses can be found at <https://www.acquisition.gov>.
- FAR 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment
 - DFARS 252.204-7000, Disclosure of Information
 - DFARS 252.204-7008, Compliance with Safeguarding Covered Defense Information Controls
 - DFARS 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting
 - DFARS 252.204-7019, Notice of NIST SP 800-171 DoD Assessment Requirements
 - DFARS 252.204-7020, NIST SP 800-171 DoD Assessment Requirements
- E. Offerors selected for Step-Two will be subject to the following requirements, at a minimum:**
- 1. Rights in Technical Data and Computer Software:** The Government anticipates Unlimited Rights (as defined in DFARS Part 227) to all technical data and/or computer software (other than commercial products and services) developed exclusively with Government funds. The Government further anticipates Government Purpose Rights (as defined in DFARS Part 227) to all technical data and/or computer software (other than commercial products and services) developed with mixed (Government and Contractor) funding. Prime offerors and their subcontractors will be required to complete the table at DFARS 252.227-7017 "Identification and Assertion

of Restrictions on the Government's Use, Release or Disclosure of Technical Data or Computer Software" to identify any restrictions to the Government's rights. Prime offerors and subcontracts shall also adhere to the requirements of DFARS 252.227-7028 "Technical Data or Computer Software Previously Delivered to the Government". If no restrictions are being asserted, the table should state "None". Government rights may be further negotiated prior to award.

2. **Organizational Conflict of Interest:** Prime offerors and their subcontractors will be required to complete MDA Form DA-78-F2 Organizational Conflict of Interest (OCI) Analysis/Disclosure Form (Attachment 1a.). The Government will assess any OCIs in accordance with the rules, procedures and responsibilities described in FAR 3.101-1, FAR Subpart 9.5 and DFARS Subpart 209.5. MDA will conduct an OCI analysis based on the information submitted, as well as any additional information requested.
3. **Small Business Subcontracting Plan:** If applicable, prime offerors will be required to submit an acceptable Small Business Subcontracting Plan in accordance with FAR Subpart 19.7.
4. **Certified Cost and/or Pricing Data:** Prime offerors and their subcontractors will be required to submit a fully disclosed cost proposal in accordance with FAR Part 15. Certified cost and/or pricing data (FAR 15.403-4) will be required for any proposals that exceed the current Truth in Negotiations Act (TINA) threshold.

Attachment:

- 1.a. MDA Form DA-78-F2 OCI Analysis and Disclosure Form